

subdivision (c), that subdivision cannot be applied to deny the enforcement of arbitration clauses governed by the FAA. [Citations.]” (*Gloster v. Sonic Automotive, Inc.* (2014) 226 Cal.App.4th 438, 446.)

Thus, in determining whether to apply section 1281.2(c), the Court must first determine if the FAA applies. Here, the contract with Bright Planet includes a governing law section, which states that “the Federal Arbitration Act governs our agreement to arbitrate, unless specifically prohibited by state law.” (Bright Planet Contract p.4 (Comp. ex. A at p. 33).) Further, Bright Planet’s Vice President of Finance states that “Bright Planet provides solar installation services in multiple states across the United States.” (Johnson dec. ¶13.)

The Court finds that the FAA applies here and therefore, Code of Civil Procedure section 1281.2(c) is preempted as to this agreement.

9. 9:00 AM CASE NUMBER: L25-03358
CASE NAME: JASON CLAUSING VS. MCCracken EXCAVATION & UNDERGROUND INC,
HEARING IN RE: MOTION TO AMEND JUDGMENT TO ADD PARTIES
FILED BY:
TENTATIVE RULING:

Assignee and current judgment creditor George Sommers (“Judgment Creditor”) filed a Motion for Order Amending Judgment Nunc Pro Tunc on February September 13, 2025 (the “Motion to Amend Judgment”). The Motion to Amend Judgment was set for hearing on July 6, 2026. No opposition has been filed.

Background

This matter was initiated by a Request that Clerk Enter Judgment and Judgment on Final Order, Decision or Award of the Labor Commissioner filed by the State of California Department of Industrial Relations. A judgment was entered thereon by the Court on March 26, 2025 (the “Judgment”). The Judgment totaled \$19,782.38 and was entered as against defendant and judgment debtor McCracken Excavation & Underground Inc (the “Judgment Debtor”). An assignment was filed on November 25, 2025, reflecting the assignment of the Judgment to the current Judgment Creditor.

Analysis

Under Code of Civil Procedure section 187, the trial court is authorized to amend a judgment to add additional judgment debtors. Code Civ. Proc. § 187; *Danko v. O’Reilly* (2014) 232 Cal.App.4th 732, 735-36.

This sometimes occurs under an “alter ego” theory. “Judgments may be amended to add additional judgment debtors on the ground that a person or entity is the alter ego of the original judgment debtor.” *Danko v. O’Reilly, supra*, 232 Cal.App.4th at 736, quoting *Greenspan v. LADT LLC* (2010) 191 Cal.App.4th 486. Amendment of a judgment to add an alter ego is an equitable procedure based on the theory that the court is not amending the judgment to add a new defendant but is merely inserting the correct name of the real defendant. *Id.* Such a procedure is an appropriate and complete method by which to bind new defendants where it can be demonstrated that in their capacity as alter ego of the corporation they in fact had control of the previous litigation, and thus were virtually represented in the lawsuit. *Id.*

In California, two conditions must be met before the alter ego doctrine will be invoked. First, there must

be such a unity of interest and ownership between the corporation and its equitable owner that the separate personalities of the corporation and the shareholder do not in reality exist. Second, there must be an inequitable result if the acts in question are treated as those of the corporation alone. *Sonora Diamond Corp. v. Superior Court* (2000) 83 Cal.App.4th 523, 538.

Among the factors to be considered in applying the doctrine are commingling of funds and other assets of the two entities, the holding out by one entity that it is liable for the debts of the other, identical equitable ownership in the two entities, use of the same offices and employees, and use of one as a mere shell or conduit for the affairs of the other. *Id.* at 538-539. Other factors which have been described in the case law include inadequate capitalization, disregard of corporate formalities, lack of segregation of corporate records, and identical directors and officers. *Id.*

No one characteristic governs, but the courts must look at all the circumstances to determine whether the doctrine should be applied. *Id.* at 539. Alter ego is an extreme remedy, sparingly used. *Id.*

First, Judgment Creditor's motion is not supported by a proper declaration. Rather, a short one paragraph declaration was signed purporting to attest that "the foregoing is true and correct" under penalty of perjury. This may have been an attempt to attest to the truth of the matters stated in the many pages in the motion appearing before the declaration page. However, much of the preceding pages contain argument and citation to legal authorities. It is not proper to comingle factual averments together with argument and legal citations in a declaration under penalty of perjury.

Second, even if only the factual averments could be properly considered, little to no information is proffered about the underlying matters giving rise to the judgment or the scope of liability for such matters. Certainly, there are no detailed facts proffered regarding the factors that might support a finding of alter ego. For example, nowhere does the Judgment Creditor purport to say anything about whether and to what extent Judgment Debtor and any of its principals engaged in the disregard of corporate formalities such that its principals ought to be held liable as alter egos.

Merely showing that collection has proved fruitless and certain people are or were officers and/or directors of the corporate Judgment Debtor is woefully inadequate to establish a basis for the imposition of alter ego liability.

No other basis has been shown to impose alter ego liability on Jacqueline Zimmer McCracken or Robert J. McCracken.

Lastly, the Court notes that although there appears to be references to some sort of motion relating to garnishment, no such relief is referenced in the notice of motion or proposed order and that discussion appears to have been erroneously included in the papers.

Disposition

The Court finds and orders as follows:

1. The Motion to Amend Judgment is DENIED.
2. The Court shall issue the order after hearing.

10. 9:00 AM CASE NUMBER: MSC20-00271

CASE NAME: MENASCO VS KILARR

*HEARING ON MOTION IN RE: ATTORNEYS FEES

FILED BY: IANCU, JERI

TENTATIVE RULING:

Motion for Attorneys' Fees filed February 23, 2026 is CONTINUED *sua sponte* by the Court to **August 3, 2026, 9:00 in Department 34**. Moving party to give notice.

11. 9:00 AM CASE NUMBER: MSC21-00846

CASE NAME: HE VS MERIDIAN

*HEARING ON MOTION IN RE: FOR LEAVE TO FILE THIRD AMENDED COMPLAINT

FILED BY:

TENTATIVE RULING:

Plaintiff Enlan He's Motion for Leave to File a Third Amended Complaint is **CONTINUED** to 9:00 a.m. on September 14, 2026 in Department 34 to be heard concurrently with Plaintiff's Motion to Extend the 5-Year Statutory Deadline to Bring Case to Trial.

12. 9:00 AM CASE NUMBER: N26-0307

CASE NAME: ERIC TOBIASON VS. THERESE WILLIAMS

*HEARING ON MOTION IN RE: NTC AND MTN FOR RECONSIDERATION AND RELIEF FROM ORDER ON CIVIL HARASSMENT RESTRAINING ORDER

FILED BY: WILLIAMS, THERESE

TENTATIVE RULING:

Defendant Therese Williams ("Defendant") filed a motion for reconsideration and relief from a civil restraining order on April 30, 2026 (the "Motion re Relief"). The Motion re Relief was set for hearing on July 6, 2026.

Background

A civil harassment restraining order was entered against Defendant on April 21, 2026 and served on April 28, 2026. See Civil Harassment Order after Hearing filed April 21, 2026; Civil Harassment Proof of Service filed April 28, 2026. Defendant filed the Motion re Relief on April 30, 2026 asserting that a courtroom scheduling change caused Defendant to miss the initial hearing despite being present in the courthouse. See Memorandum of Points and Authorities filed April 30, 2026 as part of Motion re Relief ("MPA"), p. 3. The Proof of Service dated April 29, 2026 attached to the Motion re Relief reflects service on plaintiff's counsel.

The Motion is unopposed.

Analysis

In the Court's discretion, the Court concludes that the matter should be heard by the judge who presided over the prior proceedings, Judge Athanasiou in Department 14.